

OMB Control No: 0970-0114

Expiration date: 03/31/2027

THE PAPERWORK REDUCTION ACT OF 1995 (Pub. L. 104–13)

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**Appendix 1: Lead Agency Implementation Plan  
for**

**State/Territory Kentucky**

**FFY 2025 – 2027**

**Version: Initial Plan**

**Plan Status: Approved as of 2024-11-09 00:37:10 GMT**

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
  - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

## ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not allow all permissible temporary changes to parents' work, education, or training status, as required by 98.21(a)(1)(ii)(A), 98.21(a)(1)(ii)(B), 98.21(a)(1)(ii)(C), 98.21(a)(1)(ii)(D), and 98.21(a)(1)(ii)(E). (Plan Question 2.5.2b)
- The Lead Agency does not continue assistance in some instances of a parent's non-temporary change in work, education, or training status, as required by 98.21(a)(2)(i). (Plan Question 2.5.3bi)
- The Lead Agency does not appropriately limit what families must report during the 12-month eligibility period to allowable information, as required by 98.21(h)(2). (Plan Question 2.5.4)

Overall Target Completion Date: 01/30/2025

| Action Step Number | Action Step Description                                                                                                                                                                                                  | Target Completion Date |
|--------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| 1                  | Plan question(s) 2.5.2b, 2.5.3bi, and 2.5.4. - A CR (Change Request) was submitted to Kentucky's Office of Application Technology Services (OATS) team to address system changes.                                        | 04/23/2024             |
| 2                  | Plan question(s) 2.5.2b, 2.5.3bi, and 2.5.4 - Amendments to 922 KAR 2:160 Child Care Assistance Program were filed with the Legislative Research Commission (LRC) to implement necessary changes for federal compliance. | 06/25/2024             |
| 3                  | Plan question(s) 2.5.2b, 2.5.3bi, and 2.5.4 - A meeting was held with the Eastern Kentucky University Training Branch.                                                                                                   | 08/14/2024             |
| 4                  | Plan question(s) 2.5.2b, 2.5.3bi, and 2.5.4 - Hosted a statewide Child Care Assistance Program (CCAP) Policy Panel with the Public Assistance Program Specialists (PAPS), which previewed upcoming changes.              | 11/21/2024             |

|   |                                                                                                                                                                                                                                                                        |            |
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| 5 | Plan question(s) 2.5.2b, 2.5.3bi, and 2.5.4 - Amendments to 922 KAR 2:160 Child Care Assistance Program became effective.                                                                                                                                              | 12/13/2024 |
| 6 | Plan question(s) 2.5.2b, 2.5.3bi, and 2.5.4 - Updated policy manual published, and all system changes implemented.                                                                                                                                                     | 12/15/2024 |
| 7 | Plan question(s) 2.5.2b, 2.5.3bi, and 2.5.4 - System release notes shared statewide with eligibility staff.                                                                                                                                                            | 12/16/2024 |
| 8 | Plan question(s) 2.5.2b, 2.5.3bi, and 2.5.4 - Program changes will be shared with families in multiple locations within the Kynect.ky.gov website ( <a href="https://kynect.ky.gov/benefits/s/?language=en_US">https://kynect.ky.gov/benefits/s/?language=en_US</a> ). | 01/30/2025 |

#### **EQUAL ACCESS:PAYMENT RATES**

Reason(s) for non-compliance:

- The Lead Agency did not consult with the State Advisory Council or similar coordinating body, local child care program administrators, local child care resource and referral agencies, or organizations representing child care caregivers, teachers, and directors prior to conducting a market rate survey or alternative methodology, as required by 98.45(e)(1). (Plan Questions 4.2.1ci, 4.2.1cii, 4.2.1ciii, and 4.2.1civ)
- The Lead Agency's payment rates for infants in center-based care, infants in family child care homes, preschoolers in center-based care, and preschoolers in family child care homes are not sufficient to ensure equal access, as required by 98.45(a). (Plan Question 4.3.2a)

Overall Target Completion Date: 07/31/2025

| Action Step Number | Action Step Description                                                                                                                                                                                                                                                                              | Target Completion Date |
|--------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| 1                  | Plan Questions 4.2.1ci, 4.2.1cii, 4.2.1ciii, and 4.2.1civ - Prior to August 2026, Lead Agency will consult with the State Advisory Council or similar coordinating body, care resource and referral agencies, or organizations representing child care caregivers, prior to conducting a Market Rate | 08/31/2026             |

|   |                                                                                                                                                                                                                                                                                                      |            |
|---|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
|   | Survey.                                                                                                                                                                                                                                                                                              |            |
| 2 | Plan Question 4.3.2a - Review updated data charts based on the most recent MRS with Division of Administration and Financial Management office and develop a plan for moving the identified child care provider type (certified-preschool and school-age) to 75th percentile payment rate threshold. | 10/30/2024 |
| 3 | Plan Question 4.3.2a - Requested additional Technical Assistance for adjusting the payment rates.                                                                                                                                                                                                    | 11/01/2024 |
| 4 | Plan Question 4.3.2a - Reviewing data in charts for question 4.3.2a to look at urban vs. rural or continue to use the regional populous vs. least populous with the Kentucky Child Care Aware (CCA) Market Rate Survey (MRS) data contact.                                                           | 12/01/2024 |
| 5 | Plan Question 4.3.2a - Amend state plan with the updated payment charts, if necessary, after changes are made.                                                                                                                                                                                       | 07/31/2025 |
| 6 | Plan Questions 4.2.1ci, 4.2.1cii, 4.2.1ciii, and 4.2.1civ and 4.3.2a - anticipated implementation no later than 7/31/2025.                                                                                                                                                                           | 07/31/2025 |

#### **EQUAL ACCESS:PAYMENT PRACTICES**

**Reason(s) for non-compliance:**

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.
- The Lead Agency does not pay for reasonable mandatory registration fees that the provider charges to private-paying parents, as required by 98.45(m)(4). (Plan Question 4.4.2b)

**Overall Target Completion Date: 08/01/2026**

| Action Step Number | Action Step Description                                                                                                                                                                                                                                                                                                       | Target Completion Date |
|--------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| 1                  | Plan Question 4.4.1a - System and policy changes were identified, and Division of Child Care (DCC) submitted a change request.                                                                                                                                                                                                | 03/18/2024             |
| 2                  | Plan Question 4.4.1a - The Division of Child Care had a discussion on options on Paying Prospectively.                                                                                                                                                                                                                        | 11/11/2024             |
| 3                  | Plan Questions 4.4.1a - The Lead Agency has requested technical assistance to implement the required changes. Call held with the Office of Child Care on paying prospectively.                                                                                                                                                | 11/20/2024             |
| 4                  | Plan Question 4.4.1a -DCC Director, Andrea Day, requested a waiver to Office of Child Care by December deadline.                                                                                                                                                                                                              | 12/31/2024             |
| 5                  | Plan Question 4.4.2b - System changes were identified. The Division of Child Care (DCC) submitted a change request (CR) to make system enhancements to "Registration Fees." System change request implemented for system changes to pay registration fees by adding Accounting Template IDs for registration/enrollment Fees. | 12/18/2024             |
| 6                  | Plan Question 4.4.2b - DCC began researching budgetary impact of paying reasonable mandatory registration/enrollment fees that the provider charges for all CCAP eligible families.                                                                                                                                           | 12/18/2024             |
| 7                  | Plan Question 4.4.2b - The Lead Agency has requested technical assistance to implement the required changes. This will require changes to administrative regulations, policies and the eligibility system.                                                                                                                    | 12/18/2024             |
| 8                  | Plan Question(s) 4.4.1a and 4.4.2b - Anticipated implementation will be no later than August 1, 2026.                                                                                                                                                                                                                         | 08/01/2026             |
| 9                  | Plan Question(s) 4.4.1a and 4.4.2b - Program changes will be shared with families in multiple locations within the Kynect.ky.gov website ( <a href="https://kynect.ky.gov/benefits/s/?language=en_US">https://kynect.ky.gov/benefits/s/?language=en_US</a> ).                                                                 | 08/01/2026             |

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

**Reason(s) for non-compliance:**

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

**Overall Target Completion Date: 12/31/2025**

| <b>Action Step Number</b> | <b>Action Step Description</b>                                                                                                                                                                                                                                                  | <b>Target Completion Date</b> |
|---------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|
| 1                         | Plan Questions 4.1.1c and 4.5.1i: Division of Child Care management team had discussion on Grants and Contracts.                                                                                                                                                                | 11/11/2024                    |
| 2                         | Plan Questions 4.1.1c and 4.5.1i: Director, Andrea Day, requested a federal waiver.                                                                                                                                                                                             | 12/31/2024                    |
| 3                         | Plan Questions 4.1.1c and 4.5.1i: The Lead Agency has requested technical assistance to implement the required changes. This will require changes to administrative regulations, policies and the eligibility system.                                                           | 01/30/2025                    |
| 4                         | Plan Questions 4.1.1c and 4.5.1i: The Division of Child Care will make required changes to administrative regulations regarding grants or contracts for direct services for infants and toddlers, children in underserved geographic areas, and for children with disabilities. | 05/31/2025                    |
| 5                         | Plan Questions 4.1.1c and 4.5.1i: After the administrative regulation changes have been completed, DCC will update policies for the administration changes.                                                                                                                     | 12/31/2025                    |
| 6                         | Plan Questions 4.1.1c and 4.5.1i: DCC will notify regulated child care providers and families receiving CCAP of the administrative regulation and policy changes through the DCC List Serv and the DCC Consumer Education website.                                              | 12/31/2025                    |

**EQUAL ACCESS:SUPPLY BUILDING STRATEGIES**

**Reason(s) for non-compliance:**

- The Lead Agency does not adequately describe how they identify gaps in the supply of infant/toddler child care, as required by 98.16(x). (Plan Questions 4.5.3ai)

**Overall Target Completion Date: 01/06/2025**

| <b>Action Step Number</b> | <b>Action Step Description</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <b>Target Completion Date</b> |
|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|
| <b>1</b>                  | Plan Questions 4.5.3ai - The Division of Child Care received a non-compliance notice on December 13, 2021, because the lead agency did not list data sources used to identify any shortages and declines in the supply of care types that meet parents' needs for Infant and Toddler programs.                                                                                                                                                                                                                                                                                          | <b>12/13/2021</b>             |
| <b>2</b>                  | Plan Questions 4.5.3ai - The Division of Child Care requested a KICCS (Kentucky Integrated Child Care System) report to show capacity of all child care providers, in comparison to the most recent census data to show the number of infant/toddlers that would potentially need Infant/Toddler care. DCC also used the Executive Dashboard to monitor child care deserts across the state. Data analysis indicated no supply shortage of Infant/Toddler Care based on supply and demand (comparison of services offered in comparison to the potential need for infant/toddler care). | <b>08/21/2024</b>             |
| <b>3</b>                  | Plan Questions 4.5.3ai - The Division of Child Care was able to verify the prospective number of infant and toddlers needed care per county for the state of Kentucky from the Census. We were then able to verify by county how many child care slots available across the state via Child Care Reports from our KICCS System.                                                                                                                                                                                                                                                         | <b>12/31/2024</b>             |
| <b>4</b>                  | Plan Questions 4.5.3ai - The Lead Agency intends to monitor potential future gaps in the supply and demand of infant/toddler care by reviewing KICCS reports on a quarterly basis. This data resource will be used to verify if our child care slots begin to                                                                                                                                                                                                                                                                                                                           | <b>01/06/2025</b>             |

|   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |            |
|---|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
|   | drop and therefore no longer meet the needs of the children needing care.                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |            |
| 5 | Plan Questions 4.5.3ai -Lead Agency will work with Child Care Aware and the Family Child Care Network of Kentucky to provide targeted technical assistance to child care centers to identify any barriers, concerns, and reasonings for no longer offering care to infants and toddlers. Once identified Lead Agency will work to help alleviate stress to our child care centers around any barriers or concerns they may have by helping them develop a quality improvement plan and helping direct them to any resources in the local areas. | 08/01/2026 |

#### HEALTH AND SAFETY:PRECAUTIONS IN TRANSPORTING CHILDREN

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on precautions in transporting children for licensed centers or licensed family child care providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1i)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with pre-service or orientation training requirements related to precautions in transporting children, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 05/31/2025

| Action Step Number | Action Step Description                                                                                                                                                                                       | Target Completion Date |
|--------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| 1                  | Plan Question 5.4.1i- Required Orientation pre-service content updated to reflect regulatory language for precautions in transporting children for licensed centers or certified family child care providers. | 01/31/2025             |
| 2                  | Plan Question 5.4.1i- Orientation content reviewed and updated all components including materials and translations updated for Orientation to include precautions in transporting children.                   | 05/31/2025             |



|   |                                                                                                                                                                                                                                                                                                                                              |            |
|---|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
|   | Kentucky credentialed trainers notified of changes to training content.                                                                                                                                                                                                                                                                      |            |
| 3 | Plan Questions 5.5.1aii and 5.5.1bii- During each annual inspection, as well as post-preliminary inspections when applicable, the Division of Regulated Child Care (DRCC) reviews all employee records to ensure all staff have had the required orientation training which does include precautions in transporting children as of 5/31/25. | 05/31/2025 |

## HEALTH AND SAFETY:EMERGENCY PREPAREDNESS AND RESPONSE PLANNING

Reason(s) for non-compliance:

- The Lead Agency standard for emergency preparedness and response planning does not include all the required elements for licensed centers and licensed family child care providers, as required by 98.41(a)(1)(vii). (Plan Questions 5.3.7ii, 5.3.7iii, 5.3.7vi, 5.3.7viii, 5.3.7ix, and 5.3.7x)
- The Lead Agency does not require pre-service or orientation training on emergency preparedness and response planning for licensed centers and licensed family child care providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1g)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for emergency preparedness and response planning and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 08/31/2025

| Action Step Number | Action Step Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Target Completion Date |
|--------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| 1                  | <p>KRS 199.895 (Kentucky Revised Statutes a.k.a. law) <input type="checkbox"/> <input type="checkbox"/>Evacuation plan required for child-care centers and family child-care homes -- Annual updating of plan -- Provision of plan to local emergency management officials and parents<input type="checkbox"/></p> <p>requires child care programs to have a written evacuation plan that must be updated by December 31 of each year.</p> <p>*KRS 199.895 has been effective since</p> | 01/01/2014             |

|   |                                                                                                                                                                                                                                                                                                                                                                                                          |            |
|---|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
|   | 7/12/2012.                                                                                                                                                                                                                                                                                                                                                                                               |            |
| 2 | Filed amendment to administrative regulation (922 KAR 2:120) to add language about requirements to be federally compliant.                                                                                                                                                                                                                                                                               | 11/13/2024 |
| 3 | Once the regulation changes have been completed, DCC will meet with our partners for feedback and will update the Emergency Preparedness training for all required parts of the question and Orientation (pre-service training).                                                                                                                                                                         | 03/31/2025 |
| 4 | Guidance for continuity of care for Licensed and Family Child Care will be outlined in the Emergency Preparedness training and available as a resource from CCA Health and Safety Coaches.                                                                                                                                                                                                               | 05/31/2025 |
| 5 | Updated emergency preparedness training and resources, including all components required by CCDF, will be made available to all providers. This step will correct the non-compliance.                                                                                                                                                                                                                    | 06/30/2025 |
| 6 | During each unannounced annual inspection, the Division of Regulated Child Care (DRCC) reviews all employee records to ensure all staff have had the required orientation training which will include the updated requirements for training on emergency preparedness and response planning for providers. Failure to complete training could result in a statement of deficiency or plan of correction. | 08/31/2025 |

## COMPREHENSIVE BACKGROUND CHECK:BACKGROUND CHECK PROCESSES

Reason(s) for non-compliance:

- The Lead Agency does not have a process to respond to other states' requests for interstate criminal and CAN background checks and instead requires the current or prospective staff member to request their own checks, as required by 98.43(a)(1)(iii). (Plan Question 5.7.14b)
- The Lead Agency does not post all the required information related to the interstate criminal background check and interstate child abuse and neglect (CAN) registry check

on the consumer education website, as required by 98.33(a)(1)(iii) and 98.43(g). (Plan Questions 5.7.15b and 5.7.15d)

Overall Target Completion Date: 03/31/2025

| Action Step Number | Action Step Description                                                                                                                                                                                                                          | Target Completion Date |
|--------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| 1                  | Plan Question 5.7.14b - DCC identified process changes and received federal technical assistance after the July 2024 monitoring visit. The Fitness Determination section has worked on processes using the federal technical assistance.         | 01/01/2025             |
| 2                  | Plan Question 5.7.14b - DCC Fitness Determination section will create new process to respond to other states' requests for interstate criminal and CAN background checks that does not require the provider to complete the out of state checks. | 02/28/2025             |
| 3                  | Plan Question 5.7.14b - After the new process has been approved. DCC will disseminate a tip sheet to providers to include instructions on the new process.                                                                                       | 02/28/2025             |
| 4                  | Plan Questions 5.7.15b and 5.7.15d - The tip sheet and process flow will be posted to the DCC consumer education website and a DCC List Serv message will be sent.                                                                               | 03/31/2025             |

#### HEALTH AND SAFETY:PEDIATRIC FIRST AID AND PEDIATRIC CPR

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for pediatric first aid and pediatric CPR for all staff for licensed centers or licensed family child care providers, as required by 98.41(a)(1)(x). (Plan Questions 5.3.10ai, 5.3.10aii, 5.3.10bi, and 5.3.10bii)
- The Lead Agency does not require pre-service or orientation training on pediatric first aid and pediatric CPR, for licensed centers or licensed family child care providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1j)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for

pediatric first aid and pediatric CPR and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 10/01/2024

| Action Step Number | Action Step Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Target Completion Date |
|--------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| 1                  | Plan Question 5.4.1j- The Division of Child Care updated the required Orientation training to include Pediatric first aid and pediatric CPR training for licensed centers or licensed family child care providers. Division of Child Care also created a training "Non-Certified First Aid and CPR for ECE-Professionals". This training was to supplement providers who had taken Orientation prior to the orientation changes in June 2021.                                                                                                                 | 06/01/2021             |
| 2                  | Plan Question 5.4.1j - DCC created a free training for all staff of early childhood programs on first aid and cardiopulmonary resuscitation (CPR) to meet the new regulatory requirements under 922 KAR 2:120 Section 7(8).                                                                                                                                                                                                                                                                                                                                   | 08/25/2021             |
| 3                  | Plan Questions 5.3.10ai, 5.3.10aii, 5.3.10bi, and 5.3.10bii - DCC established a standard for infant, child and adult first aid and infant, child, and adult CPR for all licensed centers or certified family child care providers by updating the Kentucky Regulations 922 KAR 2:100 and 922 KAR 2:090 (type of training specific to age groups being served). Kentucky Regulations (922 KAR 2:100, 922 KAR 2:090) were updated and approved to include requirements for Pediatric Abusive Head Trauma training (PAHT) and Age-appropriate CPR and First Aid. | 04/25/2024             |
| 4                  | Plan Questions 5.3.10ai, 5.3.10aii, 5.3.10bi, and 5.3.10bii - Kentucky Regulations (922 KAR 2:100, 922 KAR 2:090) were updated and approved to include requirements for Pediatric Abusive Head Trauma training (PAHT) and Age-appropriate CPR and First Aid.                                                                                                                                                                                                                                                                                                  | 04/25/2024             |
| 5                  | Plan Questions 5.5.1aii and 5.5.1bii - During each annual inspection, as well as post-preliminary inspections when applicable, the Division of Regulated Child Care (DRCC) reviewed all                                                                                                                                                                                                                                                                                                                                                                       | 06/01/2021             |

|  |                                                                                                                                         |  |
|--|-----------------------------------------------------------------------------------------------------------------------------------------|--|
|  | employee records to ensure all staff had the required orientation training which does include the pediatric first aid and CPR training. |  |
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## CONSUMER EDUCATION:WEBSITE AND RESOURCES FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency consumer education website does not include the process of conducting monitoring and inspections of child care providers, the policies and procedures related to criminal background checks for child care providers, or the offenses that prevent individuals from serving as child care providers, as required by 98.33(a)(1)(ii), 98.33(a)(1)(iii), and 98.33(a)(1)(iv). (Plan Questions 9.2.2ii, 9.2.2iii, and 9.2.2iv)

Overall Target Completion Date: 06/30/2025

| Action Step Number | Action Step Description                                                                                                                                                                                                                                                              | Target Completion Date |
|--------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| 1                  | Questions 9.2.2ii, 9.2.2iii, and 9.2.2iv - System changes identified and preliminary stakeholder meeting conducted.                                                                                                                                                                  | 12/20/2024             |
| 2                  | Questions 9.2.2ii, 9.2.2iii, and 9.2.2iv - DCC requested additional technical assistance and other state examples for the process of conducting monitoring and inspections of child care providers.                                                                                  | 01/31/2025             |
| 3                  | Questions 9.2.2ii, 9.2.2iii, and 9.2.2iv - DCC will continue to work with partner agencies and federal technical assistance team to create plain language for regulations and processes for the consumer website regarding background checks, and monitoring and inspection reports. | 03/31/2025             |
| 4                  | Questions 9.2.2ii, 9.2.2iii, and 9.2.2iv - DCC will update the consumer education website with the updated background check process for interstate background checks.                                                                                                                | 03/31/2025             |
| 5                  | Questions 9.2.2ii, 9.2.2iii, and 9.2.2iv- DCC will update the consumer education website with the                                                                                                                                                                                    | 06/30/2025             |

|  |                                                                                   |  |
|--|-----------------------------------------------------------------------------------|--|
|  | updated process of conducting monitoring and inspections of child care providers. |  |
|--|-----------------------------------------------------------------------------------|--|

## HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all licensed centers and licensed family child care providers, as required by 98.33(a)(4)(ii). (Plan Question 5.5.4aii). Please note the Lead Agency has an approved waiver for portions of this requirement through August 1, 2026.
- The Lead Agency monitoring and inspection reports do not contain all the required elements, specifically corrective action taken by the State and child care provider, as required by 98.33(a)(4)(iii). (Plan Question 5.5.4b)

Overall Target Completion Date: 08/01/2026

| Action Step Number | Action Step Description                                                                                                                                                                                                                               | Target Completion Date |
|--------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| 1                  | Plan Question 5.5.4aii and 5.5.4b - The Division of child care identified system changes and submitted a change request.                                                                                                                              | 05/31/2023             |
| 2                  | Plan Question 5.5.4aii and 5.5.4b -KICCS released a tip sheet that showed completed work items including updating the inspection report to include all inspection reporting for compliance and non-compliance. This step corrects the non-compliance. | 09/25/2024             |
| 3                  | Plan Question 5.5.4aii and 5.5.4b - KICCS system changes became effective on all reporting after the implementation date of 9/25/2024.                                                                                                                | 10/01/2024             |
| 4                  | Plan Question 5.5.4b -The Lead Agency requested technical assistance to improve the way in which monitoring reports are posted and making the reports easier to understand by parents/caregivers and providers.                                       | 09/30/2024             |
| 5                  | Plan Question 5.5.4b - Develop and implement a strategy to bring Kentucky's monitoring and                                                                                                                                                            | 10/30/2024             |

|    |                                                                                                                                                                                                                                                                                     |            |
|----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
|    | inspection reports into compliance with CCDF requirements.                                                                                                                                                                                                                          |            |
| 6  | Plan Question 5.5.4b - Held initial meeting with key partners to establish a vision and goals.                                                                                                                                                                                      | 10/30/2024 |
| 7  | Plan Question 5.5.4b - Developed a strategic plan for implementing near-term changes.                                                                                                                                                                                               | 11/30/2024 |
| 8  | Plan Question 5.5.4b - Requested a waiver for meeting the requirement to bring monitoring and inspection reports into compliance with CCDF requirements while improving parent-friendliness within the parameters of the system.                                                    | 12/30/2024 |
| 9  | Plan Question 5.5.4b - Collaborate with DRCC and other partners to develop consumer education language descriptions of all inspection items to be included in the posted inspection reports.                                                                                        | 08/01/2026 |
| 10 | Plan Question 5.5.4b - Determine a method for prominent display of health & safety violations.                                                                                                                                                                                      | 08/01/2026 |
| 11 | Plan Question(s) 5.5.4aii, 5.5.4b - Review all report templates to identify terminology that may not be familiar to parents. Propose alternate language or add definitions.                                                                                                         | 08/01/2026 |
| 12 | Plan Question(s) 5.5.4aii, 5.5.4b - Develop a summary section for the top of the PDF report that highlights level of compliance, health and safety violations, and other key components.                                                                                            | 08/01/2026 |
| 13 | Plan Question (s) 5.5.4aii, 5.5.4b - Work with Office of Administrative Technology Services (OATS) to improve how the reports display. Avoid downloads when possible. If downloads are required, improve download speed.                                                            | 08/01/2026 |
| 14 | Plan Question(s) 5.5.4aii, 5.5.4b - Ensure Corrective Action Plans are available and displaying properly in the system.                                                                                                                                                             | 08/01/2026 |
| 15 | Plan Question(s) 5.5.4aii, 5.5.4b - Notification of changes will be made to child care providers through the DCC List Serv and by DRCC surveyors during inspections and investigations. Notification of changes will be made to parents through the DCC Consumer Education website. | 08/01/2026 |

**LEAD AGENCY RESPONSIBILITIES:PROGRAM ADMINISTRATION, PLAN DEVELOPMENT,  
AND PROGRAM/FUNDING COORDINATION**

**Reason(s) for non-compliance:**

- The Lead Agency did not develop a Statewide Disaster Plan in collaboration with the required entities and the Plan does not include all required elements, as required by 98.16(dd), 98.16(dd)(1), and 98.15(dd)(2)(ii). (Plan Questions 8.5.1bi, 8.5.1bii, 8.5.1biv, and 8.5.1bviii)

**Overall Target Completion Date: 08/01/2026**

| Action Step Number | Action Step Description                                                                                                                                                                                                                                                                                             | Target Completion Date |
|--------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| 1                  | Plan Questions 8.5.1bi, 8.5.1bii, 8.5.1biv, and 8.5.1bviii - DCC requested technical assistance on Disaster Emergency Preparedness and received a crosswalk.                                                                                                                                                        | 03/31/2023             |
| 2                  | Plan Questions 8.5.1bi, 8.5.1bii, 8.5.1biv, and 8.5.1bviii- Update training made available for all providers on creating emergency plans with credit for licensing annual hours. This update will also include updated materials and resources for providers and partner agencies regarding emergency preparedness. | 02/28/2025             |
| 3                  | Plan Questions 8.5.1bi, 8.5.1bii, 8.5.1biv, and 8.5.1bviii- Collaborate with partner agencies to update resources and emergency plan procedures for continuation of child care subsidies and child care services.                                                                                                   | 06/30/2025             |
| 4                  | Plan Questions 8.5.1bi, 8.5.1bii, 8.5.1biv, and 8.5.1bviii-Continue workgroup with Kentucky Emergency Management for post-disaster recovery of child care services and procedures for disaster plan process and the alignment of best practices.                                                                    | 12/31/2025             |
| 5                  | Plan Questions 8.5.1bi, 8.5.1bii, 8.5.1biv, and 8.5.1bviii-Provide a series of Town Halls for                                                                                                                                                                                                                       | 02/28/2026             |



|   |                                                                                                                                                                                                                                                                                             |            |
|---|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
|   | providers to learn about Emergency preparedness updates and expectations.                                                                                                                                                                                                                   |            |
| 6 | Plan Questions 8.5.1bi, 8.5.1bii, 8.5.1biv, and 8.5.1bviii - No later than 08/01/2026, the Lead Agency anticipates development/release of a final document with a Disaster Plan that contains all of the required components listed in question 8.5.1.b.                                    | 08/01/2026 |
| 7 | Plan Questions 8.5.1bi, 8.5.1bii, 8.5.1biv, and 8.5.1bviii - No later than 08/01/2026, the Lead Agency will post updated resources and the Statewide Emergency Plan to the DCC website. A notice will be sent to all providers via the DCC List Serv making them aware of this information. | 08/01/2026 |